Ecologist advance the notion of bio centric equality, which emphasizes that all life forms have an equal right to 'live and blossom'.

3.2.5 Equality in Indian Constitution

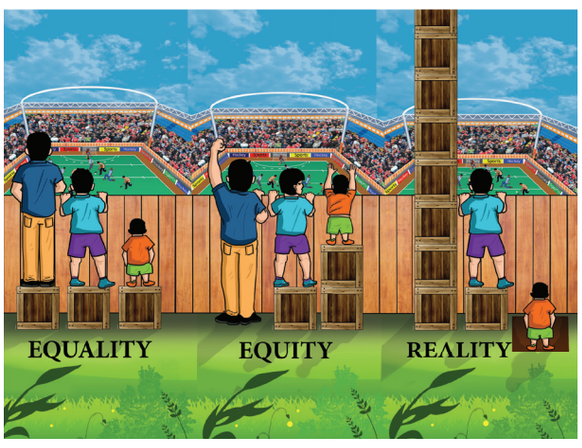
The concept of Equality in Indian constitution

The Indian constitution under article 14 provides for equality before law or the equal protection of laws to all persons. This is a statement of formal equality and gives meaning to what preamble seeks to ensure in terms of 'equality of status and of opportunity'. This also means that laws of the land will apply to all equally and there should not be discrimination on grounds of birth, caste, color, gender, language, race, religion, etc. in fact article 15 of the constitution substantiates article 14 further by prohibiting any such discrimination.

Equality before law and equal protection of law have been further strengthened in the Indian constitution under article 21. It ensures that 'No Person shall be deprived of his life or personal liberty except according to procedure established by law. This means that a reasonable fair and just procedure should be followed for depriving a person of his personal liberty and life. It admits no arbitrariness, discriminatory procedure or unequal treatment for different individuals'.

Right to Equality (Article 14-18)

- Equality before law (Article 14)
- Prohibition of discrimination on grounds of religion (Article 15)
- Equality of opportunity in matters of public employments(Article 16)
- Abolition of Untouchability (Article 17)
- Abolition of titles (Article 18)



How Equality can be achieved through differential treatment?

It is necessary sometime to treat people differently in order to ensure that they can enjoy equal rights. Certain differences may have to be taken into account for this need. Similarly some of the policies are needed to overcome the hindrances of equality by the government. For example, India follows the principle of reservation and other countries follow affirmative action.

3.3 LIBERTY

Learning Objectives

- The importance of liberty is introduced by briefing the meaning and various views of exponents of liberty.

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